

25STCV07470 25STCV07470

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BACKGROUND

This case is an employment dispute. Plaintiff Abrianna Mata was an employee at Defendant In-N-Out Burgers. Plaintiff alleges that while employed, she suffered unlawful discrimination, harassment, and retaliation. Ultimately, Plaintiff alleges she was constructively terminated from her role.

On June 20, 2025, Plaintiff filed a first amended complaint against Defendants In-N-Out Burgers, Jesus Ramos, and Angel Cortez.

On December 9, 2025, the Court issued a Minute Order sustaining the demurrer to Plaintiff's first amended complaint.

On January 8, 2026, Plaintiff filed a second amended complaint ("SAC"). The SAC alleges six causes of action stemming from the facts alleged above.

On March 12, 2026, Defendants filed a demurrer to Plaintiff's SAC. Defendants also filed an accompanying Motion to Strike.

On July 15, 2026, Plaintiff filed an opposition to the demurrer and Motion to Strike.

After the hearing was

continued due to a failure to serve the opposition, Defendants filed a reply in support of the demurrer on August 27, 2026.

TENTATIVE RULING

Defendants' demurrer to Plaintiff's first, second, fourth and fifth causes of action is OVERRULED.

Defendants' demurrer to Plaintiff's third and sixth causes of action is SUSTAINED with leave to amend

Defendants' Motion to Strike is GRANTED in part. The Court will strike paragraphs 73 and 98 with leave to amend. The motion is otherwise denied.

LEGAL STANDARD

"[A] demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; see also Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action,

it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

REQUEST FOR JUDICIAL NOTICE

As previously stated, “a demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) Accordingly, the Court “does not address evidence or other extrinsic matters except those subject to judicial notice.” (Jessica H. v. Allstate Ins. Co. (1984) 155 Cal.App.3d 590, 592.) While some courts have held that a trial court may “take judicial notice of records such as admissions, answers to interrogatories, affidavits, and the like, when considering a demurrer, only where they contain statements of the plaintiff or his agent which are inconsistent with the allegations of the pleading before the court” (Del E. Webb Corp. v. Structural Materials Co. (1981) 123 Cal.App.3d 593, 604-05), the Court does not find it appropriate to do so here.

Defendants request the Court take judicial notice of (1) Plaintiff’s responses to In-N-Out’s Requests for Admission, Set One; and (2) Plaintiff’s responses to In-N-Out’s Form Interrogatories (General Series), Set One is denied.

DISCUSSION

I.
Meet
and Confer

Before filing a demurrer or motion to strike, the demurring party shall meet and confer with the opposing party in person, by telephone, or by video conference. (Code Civ. Proc. § 430.41, subd. (a).) The demurring party must file a declaration detailing their meet and confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3).)

“A determination by the court that the meet and confer process was insufficient shall not be grounds to overrule or sustain a demurrer.” (Code Civ. Proc. § 430.41, subd. (a)(4).)

Here, the parties discussed the demurrer by telephone. (See Mansour Decl., ¶ 2.) Thus, the meet and confer requirement has been satisfied. (See Code Civ. Proc., §§ 430.41, subd. (a).)

II.

Discrimination

(Cause of Action No. 1)

The Court finds that Plaintiff has remedied the deficiencies in the first cause of action from the prior complaint.

In its prior ruling, the Court held that "Plaintiff has failed to allege facts establishing that In-N-Out (or those persons who effectively represent In-N-Out) intentionally created or knowingly permitted conditions of discrimination so intolerable that a reasonable person subject to them would resign." (Dec. 9 Minute Order, p. 6.) More specifically, Plaintiff did not allege that she told her manager the full extent of alleged conduct nor why exactly she felt uncomfortable in the workplace. (See *ibid.*) The Court also held that Plaintiff did not "allege any facts showing that she was coerced into resigning or that her working conditions were objectively intolerable at the time of her resignation." (*Ibid.*)

Plaintiff now alleges that she explained to her manager the full extent of Ramos' and Cortez's conduct and why it made her feel uncomfortable. (See SAC, ¶ 28 ["Plaintiff told a manager, Giovanni Gomez ('Giovanni') that RAMOS and CORTEZ made her, and many of her female co-workers, feel extremely uncomfortable because of their harassing and inappropriate behavior. More specifically, Plaintiff informed Giovanni that: both RAMOS and CORTEZ regularly leered at her and other young female employees; that RAMOS repeatedly called Plaintiff 'sweetness' despite Plaintiff informing RAMOS multiple times that she did not appreciate it; that RAMOS commented on Plaintiff's body, including telling her that she had a really nice body; that CORTEZ whispered in Plaintiff's ear 'it's because you're hot'; that both RAMOS and CORTEZ constantly told Plaintiff that she looked nice and/or smelled good; that Plaintiff and most of the younger female employees felt "creeped out" by RAMOS and CORTEZ' behavior."].) These allegations are sufficient and remedy the deficiencies in Plaintiff's prior complaint.

Furthermore, Plaintiff now alleges that once Ramos returned to the same In-N-Out location, the ongoing harassment continued. For instance, Ramos continued calling her "sweetness" and mocked her for allegedly being on her period. (See SAC, ¶¶ 31-32.) Cortez and Ramos also continued to leer at Plaintiff and comment on her physical appearance and scent. (See *id.* at ¶ 33.) These allegations, taken together with the allegation that Plaintiff had previously reported this conduct to her manager who stated nothing could be done, are sufficient for a jury to find that a reasonable person in Plaintiff's position would have no reasonable alternative except to quit. (See *Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1248.) Thus, Plaintiff's new allegations remedy the deficiency in her prior complaint as to this cause of action.

In opposition, Defendants contend that Plaintiff's complaint is still fatal because she did not complain about Cortez's or Ramos' conduct after Ramos returned to the same In-N-Out location in October 2024. Thus, Defendant In-N-Out argues it did not have requisite knowledge of Cortez's and Ramos' conduct. However, this ignores the allegation that Plaintiff did report this conduct to her manager in March 2024. (See SAC, ¶ 29.) Even though the report was made months prior to Plaintiff leaving her position, Plaintiff alerted Defendant through a manager and Defendant did not take action to stop the alleged conduct. Rather, Defendant transferred Ramos back to the same location as Plaintiff. Furthermore, Plaintiff's manager allegedly told her that nothing could be done, indicating that Defendant did not intend to attempt to address the situation. (See *ibid.*) Accepting the allegations as true, a reasonable person in Plaintiff's position might well find that making further reports would be futile because it was already established that Defendant would take no effective action. In addition, Defendant argues that the Court should disregard the allegations added to the SAC regarding what Plaintiff told the manager in March 2024 because it is inconsistent with the prior complaint. The Court finds that the additional allegations are permissible, while recognizing the failure to initially include the allegations might bear on Plaintiff's credibility. The Court does not find a basis to disregard the allegations entirely.

The Court finds that Plaintiff has remedied the deficiencies in her prior complaint. For this reason, the demurrer to this cause of action is overruled.

III.

Harassment

(Cause of Action No. 2)

The Court finds that

Plaintiff has stated a cause of action for harassment.

In its prior ruling, the

Court held that Plaintiff failed to allege sufficient facts to establish severe and pervasive conduct. More specifically, there were “no allegations indicating that the alleged conduct was so severe and pervasive that it materially altered Plaintiff’s working conditions.” (Dec. 9 Minute Order, p. 9.)

After examining the SAC,

the Court finds that Plaintiff has added allegations as to the alleged conduct of Ramos and Cortez, including after Ramos returned to the same store as Plaintiff, as well as additional facts regarding her report of the conduct to her manager. The Court finds that the allegations are sufficient to support a finding that the alleged conduct materially altered her working conditions or her work performance including during the period from October 2024 to December 2024 when she resigned. Therefore, the demurrer to this cause of action is overruled.

IV.

Retaliation

(Cause of Action No. 3)

The Court finds that Plaintiff

has failed to remedy the deficiencies from her prior complaint.

In its prior ruling, the

Court held that “Plaintiff has failed to adequately allege an adverse employment action through constructive discharge, and Plaintiff does not argue or allege any other adverse employment action” and that Plaintiff failed to allege a causal link between her report to her manager in March 2024, and her constructive discharge in December 2024n (Dec. 9 Minute Order, p. 11.)

After examining the SAC,

the Court finds that Plaintiff. Plaintiff now alleges that she explained to her manager the full extent of Ramos’ and Cortez’s conduct and why it made her feel uncomfortable. (See SAC, ¶ 28.) However, Plaintiff still fails to allege a causal link between this report and her alleged constructive discharge. There are

no allegations that Plaintiff's manager, or any other higher-up from In-N-Out: (1) punished her; (2) unjustly criticized her; (3) negatively altered her working conditions; or (4) enabled Ramos' and Cortez's conduct. Without such allegations, the element of a causal link between Plaintiff's report and her constructive discharge is not sufficiently asserted.

Accordingly, the demurrer to this cause of action is sustained. The Court will give Plaintiff a final opportunity to amend to assert allegations to support this cause of action to the extent Plaintiff can do so in good faith.

V.

Failure

to Prevent Discrimination, Harassment, and Retaliation (Cause of Action No. 4)

The Court has already determined that Plaintiff's discrimination claim survives demurrer. (See § II.) In doing so, the Court also determined that Plaintiff's manager was made aware of Ramos' and Cortez's alleged conduct and why it made Plaintiff feel uncomfortable. (See *ibid.*; see also SAC, ¶ 28.) Therefore, the Court finds that Plaintiff's new allegations support this cause of action. Accordingly, the demurrer to this cause of action is overruled.

VI.

Wrongful

Termination (Cause of Action No. 5)

This claim is premised upon Plaintiff's other causes of action. The Court has determined that Plaintiff's discrimination claim survives demurrer as her manager was made aware of Ramos' and Cortez's alleged conduct, and why the conduct made her feel uncomfortable. (See § II.) Therefore, these new allegations support this cause of action. Accordingly, the demurrer to this cause of action is overruled.

VII.

Negligent

Supervision and Retention (Cause of Action No. 6)

This cause of action is beyond the scope of the Court's prior leave to amend as Plaintiff was not given

permission by the Court to add a new cause of action to her complaint. (See generally Dec. 9 Minute Order; see also *Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1023 ["The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend."].) Accordingly, the demurrer to this cause of action is sustained. However, the Court will grant Plaintiffs leave to amend to add this cause of action if Plaintiff chooses to file and serve an amended complaint as she has requested leave to do so in her opposition.

VIII. Motion to Strike

The Court finds that Plaintiff has alleged facts sufficient to support a claim for punitive damages. For this reason, Defendants' Motion to Strike is only granted in part.

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(2).)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.)

To succeed on a motion to strike punitive damages, it must be said as a matter of law that the alleged behavior was so vile, base, or contemptible that it would be looked down upon and despised by ordinary decent people. (See *Angie M. v. Superior Court* (1995) 37

Cal.App.4th 1217, 1228-29.) Civil Code section 3294 provides that punitive damages are available in non-contract actions where defendant is guilty of malice, oppression, or fraud, defined as follows:

1. "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2. "Oppression" means

despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3. "Fraud" means an

intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c).)

The Court has determined

that Plaintiff's first, second, fourth, and fifth causes of action survive demurrer. The facts supporting these causes of action support Plaintiff's request for punitive damages. For this reason, the Court shall not strike paragraphs 40, 51, 62, 79, 90, and Prayer for Relief, paragraph 5. The Court shall strike paragraphs 73 and 98.

CONCLUSION

For the foregoing reasons,

Defendants' demurrer to Plaintiff's first, second, fourth and fifth causes of action is OVERRULED.

Defendants' demurrer to

Plaintiff's third and sixth causes of action is SUSTAINED with leave to amend. Plaintiff has twenty days to file and serve an amended complaint. If Plaintiff determines Plaintiff will not file an amended complaint, Plaintiff is to notify Defendants so that Defendants can file and serve an answer to the SAC.

Defendants' Motion to

Strike is GRANTED in part. The Court will strike paragraphs 73 and 98 with leave to amend. The motion is otherwise denied.